

25STCV03923 25STCV03923

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-09-16

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Case Number: 25STCV03923 Hearing Date: September 16, 2026 Dept: 408

Plaintiff Anna M. Bermudez's Counsel Strategic Legal

Practices, APC's Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.

I.

BACKGROUND

On February 11, 2025, Plaintiff Anna

M. Bermudez ("Plaintiff") filed a complaint against Defendant Nissan North America, Inc. ("Defendant") alleging causes of action for:

1. Violation of Subdivision (d) of

Civil Code Section 1793.2;

2. Violation of Subdivision (b) of

Civil Code Section 1793.2;

3. Violation of Subdivision (a)(3) of

Civil Code Section 1793.2;

4. Breach of Implied Warranty of

Merchantability; and

5. Fraudulent Inducement –

Concealment.

On April 22, 2025,

Defendant filed an answer to Plaintiff's complaint.

On August 18, 2026, counsel for Plaintiff, Strategic Legal Practices, APC ("Counsel"), filed: (1) MC-051, Motion to be Relieved as Counsel; (2) Declaration in Support of Motion to be Relieved as Counsel; (3) MC-053, Proposed Order; and (4) Proof of Service. No opposition or other responsive pleading has been filed.

II.

LEGAL

STANDARD

"The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)

An attorney moving to be relieved as counsel under California Code of Civil Procedure section 284(2) must meet the requirements set out in California Rules of Court, rule 3.1362. To comply with Rule 3.1362, the moving party must submit the following forms: (1) Notice of Motion and Motion to be Relieved as Counsel; (2) Declaration in Support of Attorney's Motion to be Relieved as Counsel; and (3) Order Granting Attorney's Motion to be Relieved as Counsel. (Cal. Rules of Court, Rule 3.1362, subd. (a), (c), (e).) The moving party must serve the aforementioned forms on the client and all other parties who have appeared in the case. (Cal. Rules of Court, Rule 3.1362, subd. (d).) Further, when the client is served by mail, the attorney's declaration must show that the client's address was confirmed within the last 30 days and how it was confirmed. (Ibid.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

III.

DISCUSSION

Counsel's motion complies with the requirements of California Rules of Court, rule 3.1362, in that Counsel

provided a motion to be relieved as Counsel; a declaration in support; a proposed order granting Counsel's motion; and proof of service as to Plaintiff.

The declaration states that there has been a complete breakdown of the attorney-client relationship between Plaintiff and Counsel. (Arabi Decl., ¶ 2.) Counsel further declares that, since July 31, 2026, Counsel has made numerous attempts to communicate with Plaintiff without any success. (Ibid.) Counsel then sent a letter to Plaintiff on August 5, 2026, and demanded an immediate response which was unsuccessful. (Ibid.)

The court determines that the requirements of Rule 3.1362 enumerated above have been sufficiently met. The court grants the requested withdrawal effective upon the filing of proof of service showing service of the signed order to Plaintiff.

IV.

CONCLUSION

Plaintiff Anna M. Bermudez's Counsel Strategic Legal Practices, APC's Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.